

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 9, 2026
8:30 a.m./1:30 p.m.

1. MARK BARRY V. JENNIFER BARRY

25FL0627

On March 18, 2026, Petitioner filed a Request for Order (RFO) seeking modification of support orders, and an order for the sale of the marital residence. He asked the court to temporarily set support to \$0 due to his inability to work. The matter came before the court for hearing on April 9, 2026 at which time the court ruled on the request to sell the marital residence and granted the request to set support to \$0. A review hearing was set for the present date and the court reserved jurisdiction to retroactively modify support back to April 15, 2026.

On June 29, 2026, Petitioner filed and served an updated Income and Expense Declaration.

On June 30, 2026, the Department of Child Support Services (DCSS) filed a Substitution of Payee form.

Respondent has not filed an updated Income and Expense Declaration. “For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration.” Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. “‘Current’ means the form has been completed within the past three months providing no facts have changed.” Cal. Rule Ct. 5.260(3).

Because DCSS is providing child support enforcement services in this matter, the issue of child support is continued to August 24th at 8:30 a.m. in Department 10 to be heard by the child support commissioner in accordance with Family Code § 4251. Respondent is ordered to file a completed Income and Expense Declaration with supporting documents no later than 10 days prior to the hearing date.

TENTATIVE RULING #1: BECAUSE DCSS IS PROVIDING CHILD SUPPORT ENFORCEMENT SERVICES IN THIS MATTER, THE ISSUE OF CHILD SUPPORT IS CONTINUED TO AUGUST 24TH AT 8:30 A.M. IN DEPARTMENT 10 TO BE HEARD BY THE CHILD SUPPORT COMMISSIONER IN ACCORDANCE WITH FAMILY CODE § 4251. RESPONDENT IS ORDERED TO FILE A COMPLETED INCOME AND EXPENSE DECLARATION WITH SUPPORTING DOCUMENTS NO LATER THAN 10 DAYS PRIOR TO THE HEARING DATE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE

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TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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2. CHERYL BENTON V. RANDALL BENTON

24FL1158

On April 14, 2026, Petitioner filed a Request for Order (RFO) seeking a stay of the Family Law Attorney's Real Property Lien. All required documents were mail served on April 20th.

Respondent filed and served his Responsive Declaration to Request for Order on June 25th.

Petitioner is objecting to, and asking the court to stay recordation of, the "Family Law Attorney's Real Property Lien" (hereinafter the "Lien"). She notes deficiencies in the lien and states that it should not be recorded because Respondent has sufficient assets with which to pay his attorneys.

Respondent asks the court to deny the requested stay. He states he has corrected the procedural deficiencies in the Lien and he argues that the community has sufficient interest in the property to allow for the Lien to attach to only his interest therein.

Family Code § 2033 allows either party to encumber his or her interest in community real property to pay reasonable attorney's fees. Fam. Code § 2033(a). The lien attaches only to that party's interest in the community property. *Id.* Where the encumbrance would likely result in an unequal division of property, impair the encumbering party's ability to meet community obligations, or would otherwise be unjust, Family Code § 2034 allows for the limitation, or outright denial, of the lien. Fam. Code § 2034(a).

After reviewing the filings of the parties as well as the supporting documents submitted, the court does not find that the Lien, with an amount not to exceed \$45,000, is likely to result in an unequal division of property as Respondent's portion of the community interest is sufficient to cover the requested amount. As such, the motion to stay the Lien is denied.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #2: THE REQUEST TO STAY THE REAL PROPERTY LIEN IS DENIED.

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